

**Apple Inc.
Services Agreement**

This Services Agreement is made and entered into as of July 6, 2015 (the “**Effective Date**”) by Apple Inc., a California corporation, having a principal place of business at 1 Infinite Loop, Cupertino, California 95014 (“**Apple**”), and Macaldia S.R.L., an Argentine company, having a principal place of business at Viamonte 1453, Piso 8, of. 54

Buenos Aires, Argentina (“**Supplier**”). Apple and Supplier are each individually referred to herein as a “**Party**” and collectively as the “**Parties.**”

1. Services and Deliverables.

1.1. **Scope of Services.** Supplier shall provide to Apple the services and Deliverables described in this Services Agreement, which includes all exhibits attached hereto and any Statement(s) of Work executed by the Parties with reference to this Services Agreement (collectively, the “**Agreement**”). As used herein: (a) “**Services**” means the services and Deliverables described in a Statement of Work; (b) “**Statement of Work**” means a statement of work that: (i) is substantially in the form attached hereto as Exhibit A; (ii) is made with reference to this Agreement; and (iii) is executed by authorized representatives of the Parties; (c) “**Work Product**” means any materials created by Supplier or Supplier Personnel, in any form, in the course of performing the Services, including but not limited to, notes, reports, documentation, drawings, computer programs (source code, object code and listings), derivatives of pre-existing copyrighted works of Supplier, inventions conceived or reduced to practice during the performance of the Services or resulting from or based upon any Confidential Information, creations, designs, trademarks, works of any kind, devices, masks, models, work-in-process, including all rights of copyright, patent, trade dress, trademark, service mark, trade secret, and/or publicity, privacy and /or moral rights and all other intellectual property rights therein; and (d) “**Deliverables**” means all Work Product and all other materials produced or provided by Supplier or Supplier Personnel in the course of performing the Services. Except as otherwise specifically provided in an applicable Statement of Work, Supplier shall provide all equipment and tools required for the performance of the Services.

1.2. **Delivery Dates.** Supplier acknowledges that time is of the essence as to the performance of the Services. Supplier has represented to Apple that Supplier has the necessary expertise, skill and resources necessary to complete the Services and deliver the Deliverables to Apple in a timely manner, and recognizes that Apple is relying on such representations in entering into this Agreement. If Supplier cannot meet a delivery date as specified in a Statement of Work or Purchase Order (each, a “**Delivery Date**”), Apple may, at its option: (i) provide its written agreement to a revised delivery date; (ii) cancel all or any portion of a Statement of Work or Purchase Order (in either case, “**Cancelled Services**”) without liability to Supplier and Supplier will promptly refund any amounts pre-paid for such Cancelled Services; (iii) for Deliverables which must be shipped, require Supplier to deliver such Deliverables using priority freight delivery with incremental freight charges at Supplier’s expense; and/or (iv) exercise all other available remedies. Apple is not obligated to accept partial Deliverables.

1.3. **Exhibits.** This Agreement includes the following exhibits:

Exhibit A - Statement of Work

Exhibit B – Form Letter Agreement for Supplier’s Employees and Agents - Template

Exhibit C – Apple Inc. Guidelines for Supplier Personnel Background Checks

2. Orders; Payment Terms; Audits.

- 2.1 Purchase Orders.** Supplier will not perform any Services prior to receipt of a purchase order from Apple's Corporate Procurement department that authorizes the performance of such Services (each, a **"Purchase Order"**). Apple shall have the right to refuse payment for any Services performed prior to Supplier's receipt of a Purchase Order.
- 2.2 Fees and Expenses; Taxes.** Subject to Section 2.1 (Purchase Orders), as consideration for Supplier's performance of the Services, Apple shall compensate Supplier as set forth in, and subject to the terms and conditions of, the applicable Statement(s) of Work. Subject to Section 9.4 (Taxes and Records), Apple will pay all taxes imposed on the provision of the Services or provision of Deliverables, excluding taxes based on Supplier's income. The payment provided for in the Statement(s) of Work constitutes Supplier's entire remuneration for its performance of the Services. Apple will not reimburse Supplier for any additional charges or expenses.
- 2.3 Invoicing and Payment Terms.** Supplier shall submit invoices and related back-up documentation in accordance with the requirements of the applicable Statement of Work. If Apple elects to receive invoices electronically, Supplier will comply with Apple's written instructions for electronic submission of invoices and shall bear any reasonable related expenses. Unless otherwise provided in an applicable Statement of Work, payment terms shall be net forty-five (45) days from Apple's receipt of a correct invoice, or Apple's acceptance of the Deliverables, whichever is later. Apple shall be entitled to discount any payment by three percent (3%) of the payment amount if such payment is made within 15 days from: (i) Apple's receipt of a correct invoice for undisputed amounts; or (ii) Apple's receipt of a replacement invoice correcting any amounts that were disputed by Apple.
- 2.4 Billing Dispute.** If Apple disputes the accuracy of an invoice (**"Billing Dispute"**), Apple will promptly, but in any case not later than thirty (30) days following the date of such invoice, notify Supplier in writing of the nature of the Billing Dispute. Apple may withhold payment of the disputed amount and such payment will not be considered past due during Supplier's investigation. Supplier will make commercially reasonable efforts to completely resolve the Billing Dispute within sixty (60) days following the date on which Supplier received Apple's initial billing inquiry. Apple will identify in its inquiry: (i) the amount disputed; (ii) the service to which the dispute applies; and (iii) the reason for withholding payment. Supplier will advise Apple of the results of the completed investigation and will make any adjustments as agreed to by the Parties.
- 2.5 Most Favored Customer Pricing.** Supplier represents and warrants that the price offered to Apple for the Services (the **"Apple Price"**) shall not, as of the effective date of such offer, exceed the lowest price Supplier offers to any other customer for similar services or deliverables, net of any rebates and discounts, and regardless of purchase volume (the **"Lowest Offered Price"**). If at any time the Lowest Offered Price is less than the Apple Price, Supplier will promptly notify Apple and, to the extent permitted by law, offer the Lowest Offered Price to Apple for the remainder of the Services and Deliverables to be provided under this Agreement.
- 2.6 Billing Audits.** Supplier shall, during the Term of this Agreement and for three (3) years after its expiration or other termination (the **"Audit Period"**), maintain written or electronic account records reflecting the basis for any charges billed to Apple. Apple may audit Supplier's records, at any reasonable time during the Audit Period, to determine the basis for any amounts billed to Apple. Such audits: (a) shall be conducted during Supplier's regular business hours, upon not less than two (2) business days prior notice to Supplier; (b) will not relieve Supplier of its obligations or liability, or constitute Apple's approval of Supplier's actions, methods, systems and/or procedures; and (c) will be for Apple's sole benefit and not for the benefit of Supplier, Supplier Personnel or any other person or entity. If an audit discloses overcharges, on Apple's demand, Supplier shall: (i) pay Apple the amount of such overcharges, together with interest on such overcharges at the lesser of ten percent (10%) per annum or the maximum amount allowed by law, from the date of each such overcharge, until reimbursed to Apple; and (ii) if such overcharges exceed two percent (2%) of the amount that should have been invoiced, Supplier will reimburse

Apple for Apple's reasonable costs and expenses incurred in conducting the audit.

3. Term and Termination.

- 3.1 Term.** The term of this Agreement will begin on the Effective Date and, unless otherwise terminated in accordance with its terms, shall: (i) continue for two (2) year(s) thereafter (“**Initial Term**”); and (ii) automatically renew for successive one (1) year terms (each, a “**Renewal Term**”). References to the “**Term**” of this Agreement shall mean the Initial Term and any Renewal Term(s). Either Party may opt out of renewal of the Term of this Agreement by providing the other Party with written notice, at least forty-five (45) days prior to the end of the then-current Initial Term or Renewal Term, of its intent not to renew the Term (“**Notice of Non-Renewal**”). In the event that a Party provides the other Party with a Notice of Non-Renewal, the Term of the Agreement shall expire at the end of the then-current Initial Term or Renewal Term, as applicable.
- 3.2 Termination.** Apple may terminate this Agreement and/or any or all Statements of Work at any time, for any reason or no reason, by giving ten (10) days written notice to Supplier. Either Party may terminate this Agreement if the other Party fails to remedy a material breach of its obligations under this Agreement within thirty (30) days after receipt of the other Party's written notice describing the breach. Upon receipt of notice of Apple's election to terminate this Agreement or any Statement of Work, Supplier will promptly take all steps necessary and appropriate to avoid incurring further fees and expenses. Supplier shall (at its expense) reasonably cooperate with Apple to effect an orderly and efficient transition to a successor supplier. If Apple terminates any Statement of Work for convenience, Apple will pay Supplier for all undisputed fees and expenses for Services rendered prior to the effective date of termination, all completed Deliverables accepted by Apple in accordance with the procedures set forth in the applicable Statement(s) of Work, and a prorated amount for any partially completed Deliverables, subject to Apple's right to offset against such amounts any refunds or damages owed by Supplier to Apple.

4. Subcontractors; Supplier Personnel.

- 4.1 Subcontractors.** Supplier shall not subcontract, delegate, assign or otherwise engage the services of any other party to perform any portion of the Services under this Agreement (each, a “**Subcontractor**”) without Apple's express prior written consent, which Apple may grant or withhold in its sole discretion. In each case, Supplier shall provide Apple with advance written notice of the identity of the proposed Subcontractor and the specific portion of the Services that the Supplier proposes to subcontract to the proposed Subcontractor (the “**Specified Services**”). Subject to the foregoing, Supplier shall ensure that any Subcontractor engaged to provide any portion of the Services has entered into a written agreement with Supplier that includes: (i) Subcontractor obligations of indemnity and confidentiality that provide Apple with at least as much protection as those set forth in this Agreement; (ii) Subcontractors' obligation to comply with the requirements of Section 9 (Compliance Requirements) below; (iii) a prohibition on further subcontracting; and (iv) a provision identifying Apple as a third party beneficiary to such agreement. Notwithstanding Apple's consent to Supplier's engagement of a Subcontractor, Supplier shall not be relieved of any obligations under this Agreement and shall remain solely responsible for the completion of the Services and Deliverables in accordance with this Agreement.
- 4.2 Supplier Personnel.** As used in this Agreement, “**Supplier Personnel**” means Supplier employees, agents, and Subcontractors who have been assigned by Supplier to provide any portion of the Services. Supplier is solely responsible for compliance with all laws and regulations regarding the payment of wages and/or other compensation to Supplier Personnel, including ensuring the provision of Workers' Compensation insurance for all Supplier Personnel. The acts and omissions of Supplier Personnel shall be deemed to be Supplier's acts and omissions. If requested by Apple, Apple shall have the right to approve, in advance, any Supplier Personnel assigned to perform the Services. At Apple's request, Supplier Personnel who have access to

Confidential Information shall sign Apple's standard "Letter Agreement for Supplier's Employees and Agents", substantially in the form attached hereto as Exhibit B. Upon Apple's request, Supplier shall promptly remove and replace any Supplier Personnel, if such Supplier Personnel fail or refuse to perform the Services in a timely, professional and competent manner, and otherwise in accordance with the requirements of this Agreement.

- 4.3 Access Requirements.** At all times while on Apple's premises or when obtaining remote access to Apple's systems, Supplier Personnel shall comply with Apple's security and safety rules, as directed by Apple. If necessary or otherwise appropriate to facilitate the performance of the Services, as determined within Apple's sole discretion, Supplier Personnel may receive security badges for unescorted access to Apple facilities, may be granted access to Apple systems, and/or may be granted access to Personal Data (in each case, "**Special Access**"). If Supplier Personnel will receive Special Access: (i) Supplier and the applicable Supplier Personnel shall comply with Apple's security policies and procedures then in effect; (ii) Supplier hereby certifies that it will obtain (or has obtained) a background check in accordance with Apple's Guidelines for Supplier Personnel Background Checks, a copy of which is attached hereto as Exhibit C; and (iii) in determining whether or not to assign Supplier Personnel to provide Services for Apple, Supplier shall fully comply with the requirements set forth in Exhibit C. Apple reserves the right to require Supplier to confirm, at any time during the Term of this Agreement, that Supplier Personnel meet the requirements of this section. Supplier shall immediately remove any Supplier Personnel from Apple's premises or the Apple account if such Supplier Personnel fail to meet the requirements of this section.

5. Insurance.

- 5.1 Minimum Insurance Requirements.** Supplier shall obtain at its own cost and expense, and maintain in full force and effect throughout the Term of this Agreement or for a longer period if specified below, the minimum types and limits of insurance set forth in this Section 5.1, and any other insurance required by law, regulation or orders in any state, territory or province where the Supplier performs Services under this Agreement. Such insurance shall be obtained and maintained with reputable and solvent insurance companies that: (i) have, where available, an A.M. Best's insurance rating of A-VII or better, or a comparable financial rating from a reputable rating bureau; and (ii) are lawfully authorized to do business in the jurisdiction(s) where the Services are to be performed. All insurance provided by Supplier shall be designated as primary to and non-contributory with any and all insurance maintained by or otherwise afforded to Apple, its subsidiaries and affiliates, and their respective officers, directors, shareholders, employees and agents (collectively, "**Apple Parties**"). Except to the extent prohibited by law, Supplier shall require its insurers to waive all rights of recovery from or subrogation against Apple Parties and their respective insurers. Subject at all times to Section 4.1 (Subcontractors), Supplier shall use best efforts to cause each of its Subcontractors, at no cost to Apple, to carry reasonable types and limits of insurance given the goods or services provided by such Subcontractor.

Minimum insurance requirements include the following:

- 5.1.1 General Third Party or Public Liability** insurance, including coverage for bodily injury, property damage, and contractual liability, and including severability of interests provisions, with limits of not less than US\$200,000 per occurrence. The Apple Parties shall be included as additional insureds for liabilities based on the Services performed by Supplier.
- 5.1.2 Workers' Compensation ("RT")** insurance in compliance with all statutory requirements, and Employer's Liability insurance with limits of not less than US\$100,000.
- 5.2 Evidence of Coverage; Effect of Coverage.** Supplier shall deliver evidence of the coverage required by this Section 5 at the time this Agreement is executed, or within a reasonable time thereafter, and within a reasonable time after Supplier renews or replaces such coverage. Supplier

shall deliver such evidence of coverage to: Apple Inc., Attention: Corporate Procurement, 1 Infinite Loop, MS 318-2CP, Cupertino, CA 95014. Apple's receipt or acceptance of evidence of coverage that does not comply with these requirements, or Supplier's failure to provide evidence of coverage, shall not constitute a waiver or modification of the insurance requirements as set forth herein. In the event of cancellation of coverage, Supplier shall promptly replace coverage so that no lapse in insurance occurs. All deductibles and self-insured retentions are to be paid by Supplier. The minimum insurance requirements set forth in this Section 5 do not limit the liability assumed elsewhere in this Agreement, including, without limitation, Supplier's defense and indemnity obligations.

6. Supplier's Representations and Warranties.

6.1 General. Supplier represents and warrants that: (a) it has full power to enter into and perform its obligations under this Agreement, including the power to convey the rights granted to Apple under this Agreement, and it has the resources required for the performance of its obligations as set forth in this Agreement; (b) it will complete the Services in a professional, workmanlike manner, with the degree of skill and care that is required by good and sound professional procedures; (c) it will complete the Services and Deliverables in accordance with applicable specifications, Statements of Work, and all applicable laws, rules, codes and regulations; (d) no Supplier Personnel having any financial interest in or under this Agreement is or has been, within the two (2) years immediately prior to the Effective Date, an employee, officer or director of Apple; and (e) the Services and Deliverables provided under this Agreement do not and will not misappropriate, violate or infringe any copyright, trademark, mask work, trade secret, patent or other intellectual property or proprietary rights of others. Supplier acknowledges that, in entering into this Agreement, Apple is relying on the representations and warranties set forth in this section. For any defective or non-conforming Services or Deliverables covered by the foregoing warranties, Supplier shall promptly, at Apple's option: (i) re-perform the Services, or (ii) repair or replace the Deliverables, or (iii) accept the return of (and credit Apple for) the defective or nonconforming Deliverables and Services, as applicable.

6.2 Additional Warranties. Supplier further represents and warrants that: (a) any Deliverables provided hereunder will materially conform to all associated documentation provided to Apple by Supplier or Supplier Personnel at the time of delivery (the "**Documentation**"); (b) the Services and Deliverables shall not be subject to any third party encumbrances, royalties, restrictions or requirements, including but not limited to any GPL or LGPL (GNU General Public License or Lesser General Public License), open source or any other third party license requirements; (c) the Services and Deliverables shall be free of any and all viruses, Trojan horses, trap doors, protecting codes or any other internal components, devices or mechanisms which are intended to: (i) cause a Deliverable to perform any material functions other than those described in the Documentation; (ii) halt, disrupt, limit access or grant improper access to or sabotage any software, system, process or device; or (iii) reveal any data or other information accessed through or processed by any software, systems, process or device without the user's consent; and (d) the Services and Deliverables shall not contain or constitute any profanity, pornography, or material which creates a hostile environment.

7. Indemnification; Limitation of Liability.

7.1 Indemnification. Supplier shall indemnify, hold harmless and, upon Apple's request, defend the Apple Parties (as defined in Section 5.1 (Minimum Insurance Requirements) above), from and against all claims, liabilities, actions, demands, settlements, damages, costs, fees, interest, and losses of any type, including reasonable attorneys' and professionals' fees and costs (collectively, the "**Claims**"), to the extent that such Claims occur as the result of: (a) any negligent act or omission, or willful misconduct, of Supplier or Supplier Personnel; (b) the failure of Supplier or Supplier Personnel to comply with Supplier's obligations under Section 8 (Confidentiality; Publicity; Ownership) or Section 9 (Compliance Requirements) of this Agreement; (c) the failure of Supplier or Supplier Personnel to comply with any applicable law; (d) any bodily injury, personal injury, death or property damage caused by Supplier or Supplier Personnel; (e) an allegation that any Services or Deliverables misappropriated, violated or infringed any third

party's patent, copyright, trademark, trade secret, mask work or other intellectual property or proprietary right (each, an **"Infringement Claim"**); or (f) any claim by Supplier Personnel for the payment of wages and/or other compensation or statutory benefits of employment, including but not limited to Workers' Compensation insurance and/or statutory penalties and/or interest, or any allegation that Supplier or Supplier Personnel are entitled to participate in or receive benefits under any Apple employee benefit plan, program or policy, or is, in any way, an employee of Apple.

7.2 Infringement Claims. In the event of an Infringement Claim, Supplier shall, in addition to its other obligations under Section 7.1 (Indemnification), promptly notify Apple in writing about the claim and, at its own expense, exercise the first of the following remedies that is practicable: (a) obtain for Apple the right to continue to use the Deliverables and receive the Services consistent with this Agreement; (b) modify the Deliverables and/or Services so they are non-infringing and in compliance with this Agreement; (c) replace the Deliverables and Services with non-infringing ones that comply with this Agreement; or (d) at Apple's request, cease providing the infringing Services, accept the return of infringing Deliverables, refund any amounts paid by Apple therefor, and relieve Apple of any obligation to pay any amounts incurred but not yet paid.

7.3 Additional Obligations. Apple shall promptly notify Supplier in writing about the Claim for which it seeks indemnification, and provide Supplier with reasonable information and assistance (at Supplier's expense) to enable Supplier to defend such Claim, provided, however, that a failure by Apple to notify Supplier shall not relieve Supplier of its obligations under this Agreement except to the extent that Supplier can demonstrate actual prejudice attributable to such failure. Apple shall allow Supplier to control and conduct the defense of any Claims and any related settlement negotiations in a manner not adverse to Apple. Apple may, within Apple's sole discretion, employ counsel to assist with Supplier's defense of Claims, provided that, if Apple is required to employ such counsel due to a Supplier conflict of interest or Supplier's failure to meet its obligations under Section 7.1 (Indemnification) or 7.2 (Infringement Claims), Supplier shall be responsible for Apple's costs of engaging such counsel. Supplier shall not settle any indemnified claim or disclose the terms of any such settlement, without Apple's prior written consent, which may not be unreasonably withheld.

7.4 Limitation of Liability. EXCEPT AS PROVIDED IN SECTIONS 7.1 (INDEMNIFICATION), 7.2 (INFRINGEMENT CLAIMS) AND 7.3 (ADDITIONAL OBLIGATIONS), AND EXCLUDING DAMAGES ARISING DUE TO SUPPLIER'S BREACH OF ITS OBLIGATIONS UNDER SECTION 8 (CONFIDENTIALITY; PUBLICITY; OWNERSHIP) OR 9 (COMPLIANCE REQUIREMENTS) OF THIS AGREEMENT, UNDER NO CIRCUMSTANCES WILL EITHER PARTY TO THIS AGREEMENT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES INCURRED OR SUFFERED BY THE OTHER PARTY ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT (INCLUDING WITHOUT LIMITATION, LOST REVENUE, LOSS OF INCOME OR LOSS OF BUSINESS ADVANTAGE), EVEN IF SUCH PARTY OR AN AUTHORIZED REPRESENTATIVE OF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. THE FOREGOING LIMITATION OF LIABILITY SHALL REMAIN IN FULL FORCE AND EFFECT REGARDLESS OF WHETHER EITHER PARTY'S REMEDIES ARE DETERMINED TO HAVE FAILED OF THEIR ESSENTIAL PURPOSE.

8. Confidentiality; Publicity; Ownership.

8.1 "Confidential Information" means any nonpublic information disclosed by Apple or Apple's employees, agents or contractors (**"Apple Disclosers"**) to Supplier or Supplier Personnel in the course of their communications regarding the subject matter of this Agreement, including but not limited to product plans, designs, costs, prices, names, finances, marketing plans, business opportunities, forecasts, orders, personnel, customer information, research, development, know-how, third party confidential information or information learned by Supplier from Apple Disclosers or through inspection of Apple's property.

Confidential Information does not include any information which: (a) Supplier can demonstrate to have had rightfully in its possession prior to disclosure by Apple Disclosers to Supplier; (b) is now or subsequently becomes generally available to the public through no fault or breach on the part of Supplier or Supplier Personnel; (c) is independently developed by Supplier or Supplier Personnel without the use of any Confidential Information, as evidenced by appropriate documentation; or (d) Supplier or Supplier Personnel rightfully obtains from a third party who has the right to transfer or disclose it without limitation. All Confidential Information remains the property of Apple. This Agreement does not grant any license or other right in any Confidential Information.

8.2 Use and Disclosure; No Publicity. Supplier may only use Confidential Information as required for the performance of its obligations under this Agreement. Supplier shall not use any Confidential Information for Supplier's own benefit or for the benefit of anyone other than Apple. Supplier shall not disclose any Confidential Information to any third party or otherwise, and shall take all reasonable precautions to prevent its unauthorized dissemination, both during and after the Term of this Agreement. Supplier will protect Confidential Information from unauthorized dissemination and/or use with the same degree of care that Supplier uses to protect and safeguard its own like information, but in no event less than the degree of care that would be exercised by a prudent person given the sensitivity and strategic value of such Confidential Information. Supplier shall limit its distribution of Confidential Information to Supplier Personnel who have a need to know for the purpose of performing Supplier's obligations under this Agreement, and shall ensure that such Supplier Personnel have entered into non-disclosure agreements that provide Confidential Information with the same level of protection that is provided in this Section 8.2. Supplier shall not make (or permit Supplier Personnel or Supplier's affiliates to make) any public statement whatsoever (including, without limitation, press releases, media statements, case studies or the like) regarding the existence of this Agreement or the Parties' relationship. All information Apple provides to Supplier is provided "AS IS" and without any warranty, express, implied or otherwise, regarding its accuracy or performance. Within ten (10) days of receipt of Apple's written request, and at Apple's option, Supplier will either return to Apple all tangible Confidential Information, including but not limited to all electronic files, documentation, notes, plans, drawings, and copies thereof, or will provide Apple with written certification that all such tangible Confidential Information has been destroyed.

8.3 Disclosures Required by Law. Supplier may disclose Confidential Information if and only to the extent that such disclosure is clearly required by applicable law, provided that Supplier shall, prior to making any such disclosure: (i) provide Apple with prompt written notification of the required disclosure; (ii) provide Apple with the complete content of the proposed disclosure; and (iii) cooperate with Apple's efforts to obtain protective treatment of Confidential Information.

8.4 Ownership of Deliverables. Subject to the provisions of Section 8.5 (Supplier Materials), all Deliverables shall be, from inception, the property of Apple. Supplier agrees to assign and does hereby expressly assign to Apple all right, title, and interest in and to the Work Product including all rights of copyright, patent, trade dress, trademark, service mark, trade secret, and/or publicity, any and all moral rights it may have in any part of the Work Product and all other intellectual or other proprietary rights of any kind now known or hereafter recognized in any jurisdiction (collectively, "**Intellectual Property Rights**"). To the extent Supplier has or may have any moral rights with respect to the Work Product that cannot be assigned under applicable law, if permitted by applicable law, Supplier hereby forever waives such moral rights and consents to any action of Apple that would violate such moral rights in the absence of such consent. During and after the Term of this Agreement, Supplier will assist Apple in every reasonable way, at Apple's expense, to secure, maintain and defend for Apple's benefit all Intellectual Property Rights in and to the Work Product, and shall promptly execute all documents, or do or arrange for others to take such actions as are reasonably necessary to give full effect to the assignments required by this section. Supplier shall ensure that all full or partial copies of the Work Product bear valid notices sufficient to establish Apple's ownership of such Work Product, including (but not limited to) copyright, trademark or mask work rights notices, as applicable. Supplier shall promptly notify Apple of any and all inventions conceived or reduced to practice in the performance of Services under this Agreement.

8.5 Supplier Materials. If Supplier or a third party claims pre-existing intellectual property rights in any materials that are to be incorporated into the Work Product, or which are necessary to enable Apple to

use the Work Product, Supplier shall describe those materials with specificity in the applicable Statement of Work and, in the case of third party materials, obtain a written release or license to enable Apple to use such materials as part of the Work Product (“**Supplier Materials**”). For all such Supplier Materials, Supplier hereby grants Apple and its subsidiaries and affiliates a paid-up, perpetual, irrevocable, fully transferable, worldwide, non-exclusive license to make, use, disclose, perform, reproduce, modify, sell, make or have made derivative works of, distribute (directly or indirectly) and sublicense such Supplier Materials, in combination with other materials owned by Apple or by third parties. Supplier retains all right, title and interest in and to Supplier Materials, including any patents, copyright, trademarks and other intellectual property rights, therein, subject to the licenses granted to Apple under this Agreement.

9. **Compliance Requirements.** Supplier and Supplier Personnel shall at all times comply with all laws and regulations applicable to the performance of its obligations under this Agreement, including without limitation, those pertaining to import and export of technical data, customs, employment, labor and equal opportunity, environmental, health and safety and all licensing, permitting and certification requirements. Supplier understands that Apple is committed to the highest standards of ethical business conduct, and that all Apple suppliers are required to meet such standards. Supplier shall comply with, and ensure that all Supplier Personnel comply with, the following:

9.1 **Anti-Corruption.**

9.1.1 Compliance. Supplier and Supplier Personnel shall comply with Apple’s Anti-Corruption Policy as posted on Apple’s public website, and with all applicable laws and regulations enacted to combat bribery and corruption, including the United States Foreign Corrupt Practices Act, the UK Bribery Act, the principles of the OECD Convention on Combating Bribery of Foreign Public Officials, and any corresponding laws of all countries where business will be conducted or Services performed pursuant to this Agreement. Supplier shall not, and shall ensure that Supplier Personnel do not, directly or indirectly, pay, offer, promise to pay, or give anything of value (including any amounts paid or credited by Apple to Supplier) to any person or entity, including an employee or official of a government, government controlled enterprise or company, or political party, with the reasonable knowledge that it will be used to obtain any improper benefit or to improperly influence any act or decision by such person or entity. Any amounts paid by Apple to Supplier will be paid only for Services actually rendered in accordance with the terms of this Agreement. Supplier shall not, and shall ensure that Supplier Personnel do not, offer or accept bribes or kickbacks in any form.

9.1.2 Disclosure of Government Related Parties. If, at any time in the course of providing the Services, Supplier will interact with a government entity, Supplier represents and warrants that it has, to the best of the Supplier’s knowledge and to the extent permitted by law, provided Apple with complete and accurate information regarding any majority owner, partner, officer, director, or manager of Supplier, and of any Subcontractor performing any portion of the Services (collectively, “**Supplier Authorized Parties**”) that is, has been or will become, an official or employee of a governmental entity or political party or a candidate for political office (each, a “**Government Related Party**”). If at any time during the Term of this Agreement, Supplier becomes aware, or otherwise has reason to believe, that any Supplier Authorized Party is, has been or will become, a Government Related Party, then, to the extent permissible by law, Supplier shall promptly notify Apple in writing.

- 9.2 **Apple Supplier Code of Conduct.** Supplier shall comply with, and shall ensure that all Supplier Personnel comply with, the requirements of the Apple Supplier Code of Conduct, currently found on Apple’s public website at <http://www.apple.com/supplier-responsibility/accountability/>, and all applicable laws and regulations relating to labor and human rights, worker health and safety, and environmental protection.

- 9.3 **Data Privacy and Security.** As a result of this Agreement, Supplier and Supplier Personnel may obtain certain information relating to identified or identifiable individuals (“**Personal Data**”). Supplier shall have no right, title or interest in Personal Data obtained by it as a result of this

Agreement, and such Personal Data shall be considered Confidential Information. If Supplier is unable to comply with the obligations stated in this Section 9.3, Supplier shall promptly notify Apple, and Apple may take any one or more of the following actions: (i) suspend the transfer of Personal Data to Supplier; (ii) require Supplier to cease processing Personal Data; (iii) demand the secure return or destruction of Personal Data; or (iv) immediately terminate this Agreement.

9.3.1 Protection of Personal Data. Supplier and Supplier Personnel shall: (i) comply with Apple's reasonable instructions regarding Personal Data; (ii) collect, access, maintain, use, process and transfer Personal Data solely for the purpose of performing Supplier's obligations under this Agreement; (iii) comply with all applicable laws, regulations and international accords, treaties, or accords pertaining to Personal Data, including without limitation, the EU/US Safe Harbor program, and shall refrain from engaging in any behavior which renders or is likely to render Apple in breach of same; (iv) if Personal Data is received directly or indirectly from the European Economic Area or from Apple's European affiliates, abide by the Safe Harbor Privacy Principles of the U.S. Department of Commerce, located at <http://www.export.gov/safeharbor>, as may be amended from time to time (the "**Safe Harbor Principles**"), excluding the Notice, Choice and Enforcement provisions contained therein; (v) take all appropriate legal, organizational and technical measures to protect against unlawful and unauthorized processing of Personal Data; and (vi) promptly notify Apple's Privacy Counsel at 1 Infinite Loop, MS 169-5CLP, Cupertino, California 95014 if it receives any requests from an individual with respect to Personal Data, and work with Apple to promptly and effectively handle such requests.

9.3.2 Data Security Procedures. Supplier and Supplier Personnel shall maintain reasonable operating standards and security procedures, and shall use their best efforts to secure Personal Data and Confidential Information (collectively, "**Confidential Data**") through the use of appropriate physical and logical security measures including, but not limited to, appropriate network security and encryption technologies. Such security measures shall also include the following:

- (i) Use of reasonable user identification or password control requirements and other security procedures in relation to the Confidential Data, including multiple-factor authentication, strong passwords, and session time-outs.
- (ii) Maintenance of firewalls to segregate Supplier's internal networks from the internet, and employing appropriate intrusion detection, monitoring, and logging capabilities to enable detecting and responding to potential security breach attempts;
- (iii) Performance of quarterly third party network vulnerability assessments;
- (iv) Maintenance of the software on Supplier's internal networks to ensure that the software is free from the vulnerabilities described in the most current version of the Open Web Application Security Project's ("**OWASP**") Top Ten list (currently found at https://www.owasp.org/index.php/Category:OWASP_Top_Ten_Project, as such site may be subsequently updated by OWASP or its successor).
- (v) Application of all manufacturer-recommended security updates to all infrastructure storing, processing or transiting Confidential Data in a timely manner, not to exceed 90 days from date of release.
- (vi) Maintenance and enforcement of policies and procedures to ensure that all of the following requirements are met:
 - (a) up to date virus protection software shall be installed on all computer systems attached to Supplier's networks;

(b) access to Supplier's computer resources and networks (including wireless networking and remote access) shall be limited to approved configurations utilizing appropriate identification and authentication methods, including the following minimum password requirements, which shall be automatically enforced by the operating system used by Supplier:

- (1) passwords shall be a minimum of eight (8) characters in length, and shall contain characters from three of the following four categories: uppercase letters, lowercase letters, numeric (0-9), and special (!@#\$%^&*);
- (2) passwords shall be updated every ninety (90) days, and the operating system shall retain a password history of ten (10) previous instances per user account;
- (3) users may change a password no more than once every twenty-four (24) hours;
- (4) the operating system shall enable a dictionary check to reject commonly used passwords, and shall lock out the user account for thirty (30) minutes upon ten (10) failed authentication attempts; and
- (5) accounts that have been unused for thirty (30) days shall be disabled.

Supplier shall implement such additional password requirements as may be communicated to Supplier by Apple from time to time.

(c) Confidential Data shall be stored only on devices located within Supplier's secure facilities, shall only be used for the purposes of performing Supplier's obligations under this Agreement, and shall not be distributed, repurposed or shared across other applications, environments or Supplier business units;

(d) Confidential Data marked "Apple Registered Confidential" shall at all times be encrypted in accordance with the Encryption Standards described below, regardless of whether such Confidential Data at rest or in transit;

(e) Confidential Data shall be encrypted in accordance with the Encryption Standards described below before transit;

(f) all encryption shall be accomplished with AES 128-bit or stronger key, or RSA with a 2048-bit or stronger key, and in accordance with industry standards for secure key and protocol negotiation and key management (collectively, the "**Encryption Standards**");

(g) Confidential Data shall not be transmitted outside of Supplier's secure facilities, transmitted on networks other than those owned by Apple or Supplier, or stored on any portable storage device, including but not limited to laptops, tablets, smart phones, flash drives, or removable media, unless, in each instance: (i) such information has been encrypted in accordance with the Encryption Standards; and (ii) Supplier has first obtained Apple's written consent to such transmission; and

(h) all documents and electronic media containing Confidential Data shall be protected in accordance with Supplier's obligations under Section 8 (Confidentiality; Publicity; Ownership) of this Agreement, and if disposal is permitted by this Agreement, shall be disposed of in a secure manner;

(vii) Ensuring that all electronic mail (email) communications pertaining to the Services or any Confidential Data are conducted to and from an email domain that is owned by Supplier, and, upon Apple's request, providing Apple with domain registration documents or other

documentation as reasonably required to confirm Supplier's ownership of such email domain; and

(viii) Other security procedures as may be issued from time to time by Apple.

If requested by Apple at any time during the Term of this Agreement, Supplier shall provide Apple with a copy of the then current security policy maintained by Supplier.

9.3.3 Information Security Breach; Other Investigations. Supplier shall promptly notify Apple in the event that Supplier learns or has reason to believe that any person or entity has breached or attempted to breach Supplier's security measures, or gained unauthorized access to Personal Data ("**Information Security Breach**"). Upon any such discovery, Supplier will investigate, remediate, and mitigate the effects of the Information Security Breach, and provide Apple with assurances reasonably satisfactory to Apple that such Information Security Breach will not recur. If any Information Security Breach or other unauthorized access, acquisition or disclosure of Personal Data occurs as a result of an act or omission of Supplier or Suppliers Personnel, Supplier will, at Supplier's sole expense, undertake remedial measures (including notice, credit monitoring services, fraud insurance and the establishment of a call center to respond to customer inquiries) in accordance with Apple's instructions. In the event of an investigation by a data protection regulator or similar authority relating to Personal Data, Supplier shall provide Apple with reasonable assistance and support in responding to such investigation.

9.3.4 Return or Destruction of Confidential Data. Upon termination of this Agreement for any reason, Supplier shall promptly contact Apple for instructions regarding the return, destruction or other appropriate action with regard to Confidential Data. Upon termination of this Agreement for any reason, or at any time at the request of Apple, Supplier shall: (i) return all Confidential Data to Apple, including but not limited to all paper and electronic files, materials, documentation, notes, plans, drawings, and all copies thereof, and ensure that all electronic copies of such Confidential Data are deleted from Supplier's (and where applicable, its Subcontractors') systems; or (ii) if requested by Apple in writing, promptly destroy, delete and render unrecoverable all tangible and electronic instances of Confidential Data from Supplier's (and where applicable, its Subcontractors') systems, all in accordance with the National Institute of Standards and Technology (NIST) Guidelines for Media Sanitization. If requested by Apple, Supplier shall provide Apple with written confirmation of its compliance with the requirements of this section.

9.4 Taxes and Records. Supplier shall be liable for any applicable income taxes, levies, duties, costs, charges, withholdings, deductions or any charges of equivalent effect imposed on, or in respect of the Services provided by Supplier to Apple under this Agreement. Where applicable, Supplier will charge Apple sales tax, excise tax, use tax, value added tax ("**VAT**"), goods and services tax ("**GST**"), consumption tax, or equivalent type charges (hereinafter "**Transaction Taxes**") that are owed by Apple solely as a result of the Services provided by Supplier to Apple under this Agreement and which are required or permitted to be collected from Apple by Supplier under applicable law. If Apple provides Supplier with a valid exemption certificate, Supplier shall not collect the Transaction Taxes covered by such certificate. All charges will be supported by valid tax invoices provided by Supplier to Apple consistent with the applicable EU invoicing directive or comparable authority of the relevant jurisdiction. Where any relevant taxation authority imposes any income tax on the payment for Services by Apple to Supplier and requires Apple to withhold such tax ("**Withholding Tax**"), Apple may deduct such Withholding Tax from the payment to Supplier and remit such Withholding Tax to the relevant taxing authority on behalf of Supplier. The determination of the applicability of a Withholding Tax is at Apple's sole discretion. If a reduced Withholding Tax rate may apply on payments to Supplier, Supplier shall furnish to Apple as soon as practicable all documentation necessary to evidence the qualifications for the reduced rate of Withholding Tax. If the necessary documentation is not provided in a timely fashion before payment, the reduced Withholding Tax rate will not apply and any payments to Supplier shall be subject to the full rate of Withholding Tax. Upon reasonable request by Supplier, Apple shall furnish Supplier with tax receipts or other documentation evidencing the

payment of such Withholding Tax when available. Upon request, Supplier shall provide Apple with a validly executed U.S. Internal Revenue Service form to establish its U.S. or non-U.S. status or any other necessary tax documentation. Where applicable, a non-U.S. Supplier shall note, on each invoice issued to Apple under this Agreement, the amount of Services performed by Supplier within the United States, if any.

- 9.5 Customs Clearance.** If goods provided pursuant to this Agreement will be transported into the United States, Supplier shall meet at least one of the following requirements: (a) Supplier shall be and remain C-TPAT-certified by U.S. Customs & Border Protection, or (b) Supplier will comply with all C-TPAT (Customs-Trade Partnership Against Terrorism) security criteria as published or otherwise communicated to Supplier by U.S. Customs and Border Protection (“**C-TPAT Security Criteria**”). For information purposes only, C-TPAT Security Criteria are currently found at: http://www.cbp.gov/xp/cgov/trade/cargo_security/ctpat/ctpat_application_material/ctpat_security_guidelines/importers/.

- 9.6 Export Control.** Supplier will not export, re-export, directly or indirectly, any United States-origin commodities, technology/technical data or software acquired from Apple, or any direct product of that technical data: (i) in violation of the export laws and regulations of the United States, including but not limited to, the Bureau of Industry and Security’s Export Administration Regulations and the regulations of the Treasury Department’s Office of Foreign Assets Control or any other relevant national government authority; (ii) to any country for which an export license or other governmental approval is required at the time of export, without first obtaining all necessary export licenses or other approvals; (iii) to any country or national or resident of a country to which trade is embargoed by the United States; (iv) to any person or firm on any government agencies Restricted Party List, including, but not limited to the U.S. Department of Commerce’s Table of Denial Orders or Entities list, or U.S. Treasury Department’s list of Specially Designated Nationals; or (v) for use in any sensitive nuclear, chemical or biological weapons, or missile technology end-uses unless authorized by the U.S. Government by regulation or specific license.

9.6.1 Work Authorization; Restricted Parties Screening. Before assigning any individual to perform any part of the Services, Supplier will confirm that each such individual: (i) will be ready to start providing Services immediately; (ii) has all appropriate work authorizations for the country or countries in which they will perform the Services; (iii) is not a prohibited or restricted party on any U.S. or non-U.S. government published listing of such parties, including but not limited to, the U.S. Department of the Treasury’s Office of Foreign Assets Control’s (“OFAC”), Specially Designated Nationals (“SDN”) List and the U.S. Department of Commerce’s Bureau of Industry and Security’s (“BIS”) Denied Parties List.

9.6.2 Export Compliance Determination. Supplier represents and warrants that, before assigning any individual who may be performing technical, engineering or similar services, Supplier shall provide Apple with any information reasonably required to enable Apple to determine whether an export license or other governmental approval is required (in each case, an “**Export Compliance Determination**”). Supplier agrees that an Export Compliance Determination will be required if the individual to be assigned: (i) is not a United States citizen, permanent resident or a protected individual (in accordance with applicable immigration and naturalization laws); and (ii) is a citizen, national or resident of a Restricted Country. For the purposes of this section, a “**Restricted Country**” is a country to which trade is embargoed by the United States or any country for which an export license or other governmental approval may be required, including but not limited to any country designated as D:1 and E:1 as listed in Supplement No. 1 to Part 740 of the U.S. EAR, as subsequently amended and supplemented. If Apple determines, in its sole discretion, that an export license or other governmental approval is required for any individual, Apple will have the right, but not the obligation, to require Supplier assign a different individual to provide Services.

- 9.7 Verification of Compliance.** Supplier represents and warrants that it has provided, and will at all times during the Term of this Agreement provide, complete and accurate information in response

to Apple's inquiries pertaining to Supplier's compliance with the requirements set forth in this Section 9. From time to time, Apple may, either directly or through a third party who has signed Apple's standard confidentiality requirements (each, a **"Third Party Assessor"**), request information from Supplier for the purpose of verifying Supplier's compliance with this Section 9. Supplier will promptly provide complete and accurate information in response to all such inquiries. If requested by Apple, and subject to Supplier's reasonable site safety and security requirements, Supplier will allow Apple and/or a Third Party Assessor, to assess Supplier's compliance with this Section 9 (each, a **"Compliance Assessment"**) through one or more of the following procedures: (i) inspection of Supplier's facilities; (ii) review of Supplier's practices, policies and relevant records; (iii) review of Supplier's data security controls; and (iv) interview of Supplier Personnel. Compliance Assessments will be conducted in an efficient manner, with minimal disruption of Supplier's operations, solely as necessary to assess Supplier's compliance.

Supplier shall promptly implement reasonable corrective action to remedy any material non-conformance identified by Apple. Subject to Section 4.1 (Subcontractors), to the extent that Supplier engages subcontractors to perform any material portion of its obligations under this Agreement, Supplier shall require each such subcontractor to: (i) comply with the requirements of this Section 9; (ii) grant Apple the right to conduct Compliance Assessments; and (iii) promptly implement reasonable corrective action to remedy any material non-conformance identified by Apple. Compliance Assessments will be conducted at Apple's expense, provided that Supplier shall promptly reimburse Apple for the cost of such Compliance Assessment if such Compliance Assessment reveals any material non-compliance with the requirements of Section 9 (Compliance Requirements).

10.0 Miscellaneous

- 10.1 Assignment.** Apple may assign this Agreement at any time, in whole or in part, to any affiliate of or successor in interest to Apple, without Supplier's consent. Supplier may not assign, subcontract, delegate or otherwise transfer any of its rights, obligations or other interests under this Agreement, in whole or in part, whether voluntarily, involuntarily or by operation of law, including through any change of beneficial ownership that occurs in connection with any form of merger, acquisition, or the sale or transfer of all or any part of Supplier's business or assets (in each case, an **"Assignment"**) without Apple's prior written consent in each instance, which consent may be granted or withheld within Apple's sole and absolute discretion. Subject at all times to the foregoing sentence, the rights, obligations and other interests of Apple and Supplier under this Agreement shall be binding upon and inure to the benefit of Apple and Supplier, and to their respective successors, executors, administrators and permitted assigns. Any Assignment made in violation of this section shall be void and shall constitute a material breach of this Agreement. Apple reserves the right to immediately terminate this Agreement if Supplier fails to obtain Apple's prior written consent to an Assignment.
- 10.2 Additional Remedies; Equitable Relief.** Any remedies at law or equity not specifically excluded by this Agreement shall be available to both Parties. The Parties agree that a breach of any of the provisions of this Agreement may result in irreparable harm to the non-breaching Party, and in such case, the non-breaching Party shall have the right to seek to enforce this Agreement and any of its provisions by injunction, specific performance or other equitable relief, in any event without prejudice to any other rights and remedies that such Party may have.
- 10.3 Attorneys' Fees.** If any action or proceeding, whether regulatory, administrative, at law or in equity is commenced or instituted to enforce or interpret any of the terms or provisions of this Agreement (excluding any mediation required under this Agreement), the prevailing Party in any such action or proceeding shall be entitled to recover its reasonable attorneys' fees, expert witness fees, costs of suit and expenses, in addition to any other relief to which such prevailing Party may be entitled. As used herein, "prevailing Party" includes without limitation, a Party who dismisses an action for recovery hereunder in exchange for payment of the sums allegedly due, performance of covenants allegedly breached, or consideration substantially equal to the relief sought in the action.

- 10.4 Governing Law; Venue.** This Agreement, and any claims relating to or arising out of this Agreement, whether arising in contract, tort, or otherwise, shall be governed and construed in accordance with the laws of the State of California, without giving effect to conflicts of laws principles. Any action or proceeding between the Parties relating to this Agreement shall take place in Santa Clara County, California; both Parties hereby waive any objection to personal jurisdiction or venue in any forum located in that county.
- 10.5 Notices.** Any notice required or permitted hereunder shall be in writing, and shall be given to the appropriate Party at the address first set forth above, or at such other address as the Party may hereafter specify in writing. Any notices to Apple shall be sent to the attention of Apple's Corporate Procurement Department, with a copy to the General Counsel/MAU. Such notice shall be deemed given: upon personal delivery to the appropriate address; or three (3) business days after the date of mailing if sent by certified or registered mail; or one (1) business day after the date of deposit with a commercial courier service offering next business day service with confirmation of delivery.
- 10.6 Dispute Resolution.** In the event of any dispute between Apple and Supplier arising out of or in connection with this Agreement, the Parties shall attempt, promptly and in good faith, to resolve any such dispute. If the Parties are unable to resolve any such dispute within a reasonable time (not to exceed thirty (30) days), then either Party may submit such dispute to non-binding mediation in Santa Clara County, California. Each Party shall bear its own expenses in connection with the mediation and share equally the fees and expenses of the mediator. If the dispute cannot be resolved through mediation within a reasonable time, then the Parties shall be free to pursue any right or remedy available to them under applicable law. The requirements of this section shall not preclude a Party from pursuing equitable relief, if delay in seeking such relief may result in irreparable harm to such Party.
- 10.7 Survival of Terms.** All terms and provisions of this Agreement, including any and all exhibits, addenda and amendments hereto, which by their nature are intended to survive any termination or expiration of this Agreement, shall so survive.
- 10.8 Marks.** Supplier will not use (or permit Supplier Personnel or Supplier's affiliates to use) Apple's trademarks, service marks, trade names, logos or other commercial or product designations for any purpose.
- 10.9 Interpretation; Severability.** The Parties have negotiated this Agreement with the advice, if desired, from their respective counsel. This Agreement will be fairly interpreted in accordance with its terms and without any strict construction in favor of or against either Party. The headings and captions herein are included for reference purposes only and shall not affect the interpretation of the provisions hereof. When used herein, the word "including" will not be construed as limiting. This Agreement shall be read with all changes of gender and number required by the context. If any provision of this Agreement is found by a court of competent jurisdiction to be unenforceable for any reason, the remainder of this Agreement shall continue in full force and effect to the maximum extent permitted by law.
- 10.10 Force Majeure.** Subject to the express provisions of Section 3.2 (Termination) above, neither Party will be deemed in default of this Agreement to the extent that performance of its obligations or attempts to cure any breach are delayed or prevented by reason of any event beyond the reasonable control of such Party, which event was not caused by such Party's negligence and could not have been avoided by such Party's commercially reasonable efforts (including, but not limited to, any act of God, fire, earthquake, natural disaster, accident, pandemic, labor unrest, civil disobedience, acts of terrorism or act of government), and provided further that such Party gives the other Party written notice thereof promptly and, in any event, within five (5) business days of discovery thereof, and thereafter uses its best efforts to continue to so perform or cure. In the event of such a force majeure event, the time for performance or cure will be extended for a period equal to the duration of the force majeure event, but in no event more than thirty (30) days.

- 10.11 No Third Party Beneficiaries.** This Agreement is executed and entered into by Apple and Supplier solely for their benefit, and for no other party (including without limitation any individual employee, officer, director, contractor or agent of either Party).
- 10.12 No Gratuities.** Supplier shall not offer or give any Apple employee or agent any gratuity, payment or other personal benefit or inducement with a view toward securing business from Apple or influencing the terms, conditions or performance of this Agreement or any statement of work or purchase order
- 10.13 Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument.
- 10.14 No Obligation.** Except as expressly set forth in this Agreement or as Apple otherwise agrees in writing, Apple is not obligated to accept or procure any item or service from Supplier. Apple may procure similar or identical items or services from other providers and, subject to the obligations of confidentiality hereunder, may internally develop similar or identical products or services
- 10.15 Other Agreements.** If there are or may be other agreements in effect between Apple and Supplier (collectively, the “**Other Agreements**”), this Agreement and the Other Agreements are and will be separate and individual obligations of the respective parties thereto. The terms of one agreement will in no event be deemed to be the terms of any Other Agreement, nor will the terms of one agreement be used to interpret the terms of any Other Agreement. No default or breach under, or expiration or termination of this Agreement will constitute a default or breach under, or cause any expiration or termination of, any Other Agreement, and vice versa.
- 10.16 Relationship.** Supplier is an independent entity providing services to Apple. This Agreement is not intended to create, and should not be construed as creating, an employment relationship, partnership, joint venture or agency relationship. Supplier shall retain its independent status and shall use its own discretion in performing the Services, subject to Apple’s general direction and to the specific terms and conditions of this Agreement. Supplier shall in all respects control the means and manner of its performance, and the performance of Supplier Personnel. Supplier is responsible to report as income to the appropriate government agencies all compensation received pursuant to this Agreement and pay all applicable taxes thereon.
- 10.17 Supplier Diversity; Equal Opportunity.** Supplier acknowledges that Apple, as a U.S. federal contractor, may be subject to U.S. federal laws and regulations encouraging opportunity for award of subcontracts to small, service-disabled-veteran-owned, women-owned, minority-owned, and small disadvantaged businesses (the “**Diversity Requirements**”). If Apple is required to include in this Agreement any additional terms and conditions to meet the Diversity Requirements, the Parties will negotiate in good faith to amend this Agreement to include such terms and conditions. Unless exempt, Supplier and Supplier Personnel shall abide by the requirements of 41 CFR §§ 60-1.4(a), 60-300.5(a) and 60-741.5(a). These regulations prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities, and prohibit discrimination against all individuals based on their race, color, religion, sex, or national origin. Moreover, these regulations require that covered prime contractors and subcontractors take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, national origin, protected veteran status or disability. If applicable, Supplier and Supplier Personnel shall also abide by the requirements 41 CFR § 61-300.10 regarding veterans’ employment reports and 29 CFR Part 471, Appendix A to Subpart A regarding posting a notice of employee rights.
- 10.18 Waiver; Modification.** No amendment, modification, waiver or supplement shall be made with respect to this Agreement or any provision of this Agreement by course of performance, course of dealing or usage of trade, or by the failure of a Party to object to a deviation from the terms of this

Agreement. Any waiver, modification or amendment of any provision of this Agreement shall be effective only if in writing and signed by authorized representatives of the Parties.

10.19 Complete Understanding. This Agreement and any attached exhibits, schedules and addenda, all of which are incorporated into this Agreement by this reference, constitute the full and complete understanding and agreement of the Parties relating to the subject matter hereof and supersede all prior understandings and agreements relating to such subject matter. The provisions of this Agreement shall prevail over any conflicting provisions in any purchase order, acceptance notice or other document generated by the Parties except as expressly provided in the preceding sentence.

IN WITNESS WHEREOF, Apple and Supplier have executed this Agreement on the dates set forth below.

APPLE INC.

By: _____
Signature
Name: _____
Printed Name
Title: _____
Date: _____

SUPPLIER

By: _____
Signature
Name: _____
Printed Name
Title: _____
Date: _____

By: _____
Signature
Name: _____
Printed Name
Title: Sr. Director, Corporate Procurement
Date: _____

EXHIBIT A**STATEMENT OF WORK**

This Statement of Work is effective as of July 6, 2015 and is attached to and incorporated in that certain Services Agreement entered into by Apple Inc. (“**Apple**”) and Macaldia S.R.L. (“**Supplier**”) dated July 6, 2015, including any subsequent amendments thereto (together with this Statement of Work, the “**Agreement**”). Unless otherwise defined, the capitalized terms used in this Statement of Work, shall have the same meaning as in the Agreement. In the event of a conflict between this Statement of Work and the Agreement, this Statement of Work shall control.

Supplier shall provide the following Services and Deliverables on the dates set forth below (collectively, the “**Services**”):

1. Services and Deliverables.

- 1.1 Overview.** Supplier will provide testing and certification services which will allow Apple to register its various products with the Argentine government.
- 1.2 Description of Services and Deliverables.** Specifically, Supplier shall
1. Provide support services for Argentina specific government certifications
 2. Track existing certificates and notify Apple six weeks prior to expiration
 3. Support the certification renewal process upon Apple’s request
 4. Pay lab testing fees up front and later be reimbursed by Apple
 5. On behalf of Apple, will sign for product certification and hold certificate in Argentina
- 1.3 Required Resources.** Except as otherwise provided in Section 1.4 (Apple Resources) below, Supplier will provide all materials and resources (including Supplier Personnel) necessary to complete the Services.
- 1.4 Apple Resources.** Apple will provide the following materials and resources as needed to facilitate completion of the Services: Apple products for which Apple requests services. All information, materials and other property made available by Apple, whether tangible or intangible (collectively, “**Apple Property**”), including but not limited to hardware, software, specification, or other Apple intellectual property, is and shall remain Apple’s property and is being provided hereunder for the sole purpose of facilitating Supplier’s provision of the Services. All Apple Property is Confidential Information subject to the requirements of Section 8 (Confidentiality; Publicity; Ownership) of the Agreement. Supplier shall use Apple Property for the sole purpose of performing the Services, and shall comply with all license terms and other terms of use that may apply to such Apple Property. All Apple Property shall be returned to Apple upon completion of the Services.
- 1.5 Ownership of Deliverables; Supplier Materials.** All Deliverables produced by Supplier in the course of performing the Services will be subject to the requirements set forth in the Agreement, including without limitation, Section 8 (Confidentiality; Publicity; Ownership). The following Supplier Materials will be incorporated into the Deliverables, or are necessary to enable Apple to use the Deliverables, and Supplier hereby warrants that it has the right to use such Supplier Materials and to grant the rights specified in Section 8.5 (Supplier Materials) of the Agreement. Supplier will notify Apple in writing of any additional Supplier’s Materials before utilizing them in connection with any Deliverables, as provided in Section 8.5 (Supplier Materials) of the Agreement.

Title	Brief Description
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No Supplier Materials Included

[] Additional Supplier's Materials are listed on the attached sheet(s).

2. **Dates of Services.** Unless earlier terminated, this Statement of Work shall remain in effect as long as the Agreement is in effect.
3. **Fee Schedule.** Supplier agrees that the payment provided for in this Statement of Work constitutes Supplier's entire remuneration for its performance of the Services. Supplier will not be reimbursed for any additional charges or expenses of any kind without the express prior written approval by an authorized Apple representative. The fees payable to Supplier shall be as follows:

3.1 Time and Materials.

3.1.1 Hourly Rates. Supplier's fees for the Services and Deliverables shall be invoiced and paid on at the following hourly rate(s):

Support Fees

Importers Support

USD \$100.00 per hour

When invoicing for hourly rates, Supplier must include in the invoice: description and date of work, name of individual who performed the work, number of hours performed (broken down to the nearest one-tenth of an hour) and the hourly rate charged for each named individual.

3.2 Fees Upon Completion of Certain Milestones or Deliverables. Subject to Supplier's successful provision of the Deliverables in accordance with the Delivery and Performance Schedule specified in Section 1.5, and provided that Apple has accepted such Deliverables after completion of the acceptance procedures described in Section 1.6, Supplier shall be paid in accordance with the following Milestone Schedule:

Radio Certification Costs – CNC Forms and follow-up	Milestone Payment
Bluetooth	USD 900.00
Bluetooth + WiFi	USD 1,200.00
Bluetooth + WiFi + Cellular	USD 1,400.00
Bluetooth + WiFi + Cellular + NFC	USD 1,500.00
CNC Renewal	USD 650.00
CNC / Copitec	USD 32

Radio Laboratory Costs will be paid by Supplier to an Apple approved testing laboratory and then reimbursed by Apple. The below Radio Laboratory Costs below are for reference only.

Radio Laboratory Costs <i>REFERENCE ONLY</i>	Milestone Payment
Bluetoothf Test	AR\$ 2,400 + IVA 21%
Bluetooth + WiFi	AR\$ 5,400 + IVA 21%

Radio Laboratory Costs <i>REFERENCE ONLY</i>	Milestone Payment
Bluetooth + WiFi (abgn) + Cellular (Cellular is not tested)	AR\$ 5,400 + IVA 21%
Bluetooth + LE + WiFi (abgn)	AR\$ 6,000 + IVA 21%
BT + BTLE + WiFi (a/b/g/n/ac) (TUV Express – 48 hours)	AR\$ 11,000 + IVA 21%

Supplier shall invoice Apple only after services have been performed and accepted by Apple.

3.3 Certificate Holding CNC Fee. Once a certificate has been secured, Supplier will invoice Apple USD 750.00 for Supplier to hold the certificate for a period of three (3) years.

4. Primary Contacts/Project Managers.

Supplier:

Jorge Sagasti
+598 94 735 548
Jorge@macaldia.com

Apple:

Rodrigo Silveira
+1 408 597-7967
rodrigo_silveira@apple.com

The above individuals will be responsible for managing and responding to questions and issues arising in the course of the Supplier's performance of the Services described in this Statement of Work.

- 5. Invoicing; Payment Terms.** Supplier shall submit invoices for Services rendered after services are performed. Invoices must be sufficiently detailed, and shall include all backup documentation needed to permit Apple to substantiate that the Services have been rendered and the Deliverables have been accepted. Invoices will be submitted to the address specified on the applicable Purchase Order and, if requested, copies will be sent to the Apple contact identified in Section 4 (Primary Contacts) above. Payment terms shall be as set forth in the Agreement.

SUPPLIER SHALL NOT PERFORM ANY SERVICES UNDER THIS STATEMENT OF WORK UNTIL SUPPLIER HAS RECEIVED APPLE'S PURCHASE ORDER FOR SUCH SERVICES. APPLE SHALL HAVE THE RIGHT, IN ITS SOLE DISCRETION, TO REFUSE PAYMENT FOR ANY SERVICES PROVIDED PRIOR TO OR WITHOUT A PURCHASE ORDER.

APPLE INC.

By: _____
Signature
Name: _____
Printed Name
Title: _____
Date: _____

SUPPLIER

By: _____
Signature
Name: _____
Printed Name
Title: _____
Date: _____

By: _____
Signature

Name: _____
Printed Name

Title: Sr. Director, Corporate Procurement

Date: _____

EXHIBIT B

**FORM LETTER AGREEMENT FOR
SUPPLIER'S EMPLOYEES AND AGENTS**

This Letter Agreement is attached to and made a part of that certain Services Agreement entered into by and between Apple Inc. ("**Apple**") and Macaldia S.R.L. ("**Supplier**"), dated as of July 6, 2015.

To: Apple Inc.
1 Infinite Loop
Cupertino, California 95014
Attention: _____

I am an () employee () agent of Macaldia S.R.L. (hereafter referred to as "**Supplier**"). I understand that Supplier has entered into that certain Services Agreement with Apple Inc. ("**Apple**"), dated July 6, 2015, as an independent service provider (the "**Agreement**"). I have been assigned by Supplier to provide services to Apple under and pursuant to the Agreement.

I understand and agree that my wages and all other compensation shall be paid by Supplier and that Supplier shall be responsible for providing any and all statutory benefits of employment, including but not limited to workers' compensation insurance.

I understand and agree that I am not Apple's employee and that I am not eligible for any Apple employee benefits. I hereby agree that I will immediately notify Apple in writing if at any time I believe that I am an Apple employee or if I believe that any other statements made in this letter are inaccurate in any way. If I fail to so notify Apple in writing of any statements in this letter that I believe are inaccurate in any way, my failure to so notify Apple will attest to the accuracy of the statements in this letter.

For the purposes hereof, the term "**Apple Confidential Information**" means all information relating to Apple's business operations, including but not limited to information regarding the research, development, products, methods of manufacture, trade secrets, business plans, suppliers, customers, finances, and personnel data related to the business or affairs of Apple, but it does not include information (a) which I rightfully knew before Apple disclosed it to me; (b) which has become publicly known through no wrongful act of Supplier; or (c) which I have developed independently, as evidenced by appropriate documentation.

I understand that in the course of performing services for Apple on behalf of Supplier under and pursuant to the Agreement (the "**Services**"), I may learn some Apple Confidential Information. I agree not to disclose any Apple Confidential Information and promise to take all reasonable precautions to prevent its unauthorized dissemination. Without limiting the scope of this duty, I agree to limit my distribution of Apple Confidential Information to employees and agents of Supplier who have a need to know and who have signed this agreement. I further agree not to use any Apple Confidential Information for my own benefit or for the benefit of anyone other than Apple and, in particular, except to the extent necessary to perform the Services, I agree not to design or manufacture any products which incorporate any Apple Confidential Information.

In consideration of my assignment by Supplier to perform the Services, I agree that, to the extent that I produce any work product in performing such Services, including (but not limited to) notes, reports, documentation, drawings, computer programs (source code, object code and listings), derivatives of pre-existing copyrighted works of Supplier, customer or supplier lists, inventions conceived or reduced to practice during the performance of the Services or resulting from or based upon any Apple Confidential Information, creations, designs, trademarks, works of any kind (including, by way of example only, movies and audio or visual works), devices, masks, models, work-in-process, and deliverables (collectively, "**Work Product**"), all such Work Product shall be the property of Supplier. Therefore, I agree to assign and do hereby expressly assign to Supplier all right, title, and interest in and to

the Work Product of the Agreement including any and all moral rights I may have in any part of the Work Product; I also hereby forever waive and agree never to assert any and all moral rights it may have in any part of the Work Product even after termination of work on behalf of Supplier. During and after the term of this Agreement, I will assist Supplier or Supplier's assignee in every reasonable way, at Supplier's expense, to secure, maintain and defend for Supplier or Supplier's assignee's benefit all copyrights, patent rights, mask work rights, trade secret rights and other proprietary rights in and to the Work Product.

I acknowledge that all Apple Confidential Information remains the property of Apple and that no license or other rights in the Apple Confidential Information is granted hereby. I agree to return all Apple Confidential Information to Apple on Apple's written request and, in any event, upon termination of the Agreement.

Address:

Signature

Printed Name

Date

EXHIBIT C

Apple Inc. Guidelines for Supplier Personnel Background Checks

- 1. Supplier Background Check Requirements.** Supplier must lawfully obtain a background check for all Supplier personnel who will have (i) unescorted access to Apple premises; or (ii) remote access to Apple's systems to perform services under the Agreement. If the assigned Supplier personnel are Supplier's employees, then Supplier shall be responsible for obtaining the background check. If the assigned Supplier personnel are subcontractors, then the Supplier is responsible for obtaining certification from the subcontractor's employer that such employer has lawfully obtained a background check as required under these guidelines.
- 2. Legal Compliance; Confidentiality.** Supplier shall be solely responsible for ensuring that all background checks are obtained in compliance with all applicable laws and regulations, including without limitation, the Fair Credit Reporting Act (FCRA) and similar state and local laws and regulations. Supplier shall be solely responsible for any adverse employment decisions made in reliance on data revealed in background checks. **Supplier shall not, under any circumstances, reveal the results of any background check to Apple.**
- 3. Scope of Background Check.** The required background check will have been performed within the twelve (12) months preceding the date that such Supplier personnel begin providing services on Apple premises, and will consist of a report of criminal conviction/pending charges for the last seven (7) years. To the extent permitted by applicable law, a credit check will also be required for all such persons who will be providing services in an area in which they may have significant financial accountability, which is to include a personal credit history for at least the last five (5) years. Persons who will be required to drive an Apple vehicle are also required to have a valid driver's license and driving history record for the past five (5) years.
- 4. Background Check Adjudication Criteria.** Each background check should be evaluated according to the services to be performed by the person and whether the past behavior of such person presents a potential risk to Apple, its people and/or other assets, or its relationship with others. Supplier should reference the following adjudication standards when determining whether or not to assign an individual to perform services for Apple. With reference to the Background Check Adjudication Criteria tables below:

 - a) if a background check returns data that falls into one of the **"Does Not Meet Company Standards"** categories below, Supplier shall not assign such individual to perform services for Apple; and
 - b) if a background check returns data that does not fall into any of the "Does Not Meet Company Standards" categories below, but does fall into one or more of the categories marked **"Pending"**, then Supplier shall not assign such individual to perform services for Apple if, in Supplier's reasonable judgment, the background check data indicates that the individual presents a potential risk to Apple, its people, its assets or its relationship with others.

Background Check Adjudication Criteria**Criminal convictions and pending charges during the last 7 years:**

1	No Record Found or clear record	Meets Company Standards
2	Court disposition of not guilty, nolle prosequere, waived or dismissed: 2 or less 3 or More	Meets Company Standards Pending
3	Traffic or vehicle code violation	Meets Company Standards
4	Any misdemeanor conviction except for crimes involving weapons, violence, theft, robbery, burglary, embezzlement, dishonesty, misappropriation, fraud, or sex crimes	Pending
5	Any misdemeanor conviction for crimes involving weapons, violence, theft, robbery, burglary, embezzlement, dishonesty, misappropriation, fraud, or sex crimes	Does Not Meet Company Standards
6	Misdemeanors pending court disposition	Pending
7	Any felony conviction except for crimes involving weapons, violence, theft, robbery, burglary, embezzlement, dishonesty, misappropriation, fraud, or sex crimes	Pending
8	Any felony conviction for crimes involving weapons, violence, theft, robbery, burglary, embezzlement, dishonesty, misappropriation, fraud, or sex crimes	Does Not Meet Company Standards
9	Felony charges pending court disposition	Pending
10	Outstanding Warrants (no convictions)	Pending
11	Drunk driving or related charge (one conviction only)	Meets Company Standards
12	Drunk driving or related (more than one conviction)	Pending
13	Worthless (bad) check (one conviction)	Meets Company Standards
14	Worthless (bad) check (one conviction) with a Credit check required for hire	Does Not Meet Company Standards
15	Worthless (bad) check (more than one conviction)	Does Not Meet Company Standards
16	Misdemeanor marijuana conviction that was not negotiated down from a felony charge.	Meets Company Standards
17	Sale and/or delivery of marijuana and controlled substances (drugs)	Does Not Meet Company Standards

18	Contributing to the delinquency of a minor	Pending
19	False financial statement	Does Not Meet Company Standards
20	Mob action (AKA gang activity)	Does Not Meet Company Standards
21	Computer crimes	Does Not Meet Company Standards
22	Criminal Conversion/Fraud	Does Not Meet Company Standards
23	Deferred Adjudication, Probation before Judgment including dismissed	Pending
24	All others	Pending

Supplier Personnel Background Check Adjudication Criteria (continued)

MVR Adjudication – Limited use 3 year history – Required only for Individuals who will be required to drive an Apple vehicle.

1	Three or less moving violations within the last 3 years	Meets Company Standards
2	Invalid driver's license	Pending
3	Drunk driving or related charge (DUI) (one conviction only)	Meets Company Standards
4	Convicted of a felony involving the use of a motor vehicle	Does Not Meet Company Standards
5	Convicted of using false or fictitious registration plates or driver's license	Does Not Meet Company Standards
6	Two or more moving violations and/or accidents within the last 12 months	Does Not Meet Company Standards
7	Current suspended, revoked or expired license	Does Not Meet Company Standards
8	All others	Pending

Credit Adjudication -- To the extent permitted by applicable law, required only for individuals who will be providing services in an area in which they may have significant financial accountability.

1	If credit report has no items in Collections, Public Records, and Negative items	Meets Company Standards
2	If the credit report has one or more items in Collections, Public Records, and/or Negative accounts	Pending
3	No data found or invalid Social Trace and/or Credit.	Pending

Sexual Offense Registry

1	Registered sex offender	Pending
2	Information comes back as No record	Meets Company Standards